

HOUSE No. 966

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher Hendricks

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the mistreatment of birds.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/17/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/21/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>2/24/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/26/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/2/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/18/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/26/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/8/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>6/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>6/26/2025</i>
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>7/8/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/21/2025</i>

HOUSE No. 966

By Representative Hendricks of New Bedford, a petition (accompanied by bill, House, No. 966) of Christopher Hendricks and others for legislation to prohibit the mistreatment of birds. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the mistreatment of birds.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 118 of chapter 94 of the General Laws is hereby amended by
2 inserting before the definition of “broker” the following definition: “‘Bird’, any winged
3 vertebrate, such as a duck or goose.”

4 SECTION 2. Section 118 of Chapter 94 is further amended by inserting after the
5 definition of “department” the following definition: “‘Force feeding’, a process that causes a bird
6 to consume more food than a typical bird of the same species would consume voluntarily. These
7 methods include but are not limited to delivering feed through a tube or other device inserted into
8 the bird’s esophagus.”

9 SECTION 3. Section 118 of Chapter 94 is further amended by striking the definition of
10 “Poultry” and replacing it with the following: “any domesticated bird, whether live or dead,
11 including a duck or goose.”

12 SECTION 4. Section 127 of Chapter 94, as so appearing, is hereby amended by inserting
13 after clause 3 of Subsection (a) the following clause: "(4) force feed a bird for the purpose of
14 enlarging the bird's liver beyond the normal size or hire another person to do so."

15 SECTION 5. Section 127 of said chapter 94, as so appearing, is further amended by
16 inserting after clause 3 of Subsection (b) the following clause: "(4) any products that are the
17 result of force feeding a bird for the purpose of enlarging the bird's liver beyond the normal
18 size."